

26STCP01647 26STCP01647

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Case Number: 26STCP01647 Hearing Date: September 24, 2026 Dept: 836

DEMURRER TO THE

PETITION FOR WRIT OF MANDAMUS

Date: 9/24/26

(1:30 PM)

Case: David Ferrer v. Public

Employment Relations Board (26STCP01647)

TENTATIVE RULING:

Respondent Public Employment Relations Board's Demurrer to the
Petition for Writ of Mandamus is SUSTAINED without leave to amend.

I. BACKGROUND

On April 28, 2026, petitioner David Ferrer initiated this action against respondent Public Employment Relations Board ("PERB"). Pursuant to the petition, petitioner seeks a writ of mandate under CCP § 1085 compelling PERB to (1) vacate PERB Decision No. 3018, issued April 24, 2026, in Case No. LA-CE-6977-E; (2) reconsider the matter "under the correct prima facie standard;" and (3) "permit further administrative processing consistent with the Court's ruling." (Pet. ¶ 1; Prayer for Relief at ¶¶ 1-3..)

As alleged, petitioner is a deaf educator who was formerly employed by Downey Unified School District (the "District"). (Pet. ¶ 20.) In separating from the District, petitioner signed a settlement agreement. (Pet. ¶

22.) Petitioner also filed administrative charges and complaints against the District, which included an Unfair Practice Charge with PERB (the “Charge”). (Pet. ¶¶ 12, 21.) On April 8, 2025, the District’s counsel issued a written demand to petitioner, contending that the Charge violated the settlement agreement and demanded a withdrawal of the Charge, or else litigation would be pursued. (Pet. ¶ 22-23.) On August 11, 2025, the District filed a lawsuit against petitioner for breach of contract. (Pet. ¶¶ 24-26.)

On December 11, 2025, PERB’s Office of General Counsel issued a Warning Letter that identified deficiencies within the Charge and gave petitioner a chance to correct the issues. (Pet. ¶ 13.) On January 2, 2026, petitioner filed a Fifth Amended Charge, narrowing the issue to the allegation that the District “retaliated against and interfered with protected PERB activity by threatening and filing civil litigation based on petitioner’s administrative filings. (Pet. ¶ 14.) On January 15, 2026, PERB’s Office of General Counsel dismissed the Fifth Amended Charge on the grounds that petitioner lacked standing as he was not an employee at the time the District filed its lawsuit and that petitioner failed to state a prima facie case as “he had not shown the District’s lawsuit lacked a reasonable basis.” (Pet. ¶ 15.)

Petitioner appealed the dismissal. (Pet. ¶ 16.) On April 24, 2026, PERB issued Decision No. 3018, holding that post-separation acts by a former employer are actionable if the allegations show that they are “integrally tied to the employment relationship and satisfy substantive and procedural requirements.” (Pet. ¶ 17.) Ultimately, PERB upheld the dismissal because petitioner did not allege facts to show that the retaliatory lawsuit was objectively baseless. (Pet. ¶¶ 18-19.)

Petitioner alleges that PERB committed a legal error in upholding the dismissal by reasoning that “[o]nce PERB recognized that [p]etitioner adequately alleged retaliation for protected activity, the proper course was to permit further administrative processing unless the charge was legally incapable of proceeding.” (Pet. ¶ 39.) It is further alleged that PERB improperly applied a heightened pleading standard and required petitioner to litigate the merits of his case. (Pet. ¶¶ 41-49.) It is also alleged that PERB “overlooked the legal significance of a public employer’s lawsuit seeking damages and injunctive relief.” (Pet. ¶ 53.)

On June 17, 2026, PERB filed the instant demurrer to the petition on the grounds that it fails to “show a colorable claim that PERB violated

[petitioner's] constitutional rights, exceed[ed] a grant of its authority, or embraced an erroneous statutory construction" per Internat. Assn. of Fire Fighters, Local 188, AFL-CIO v. Public Employment Relations Bd. (2011) 51 Cal. 4th 259, 271. (Notice at pg. 2.) Petitioner opposes the demurrer.

II. DISCUSSION

As a preliminary matter, the Court notes that petitioner's opposition is oversized by seven pages. (CRC rule 3.1113(D). Therefore, the Court shall only consider the opposition's first fifteen pages, which are marked Page 4 through Page 18.

As an additional preliminary matter the Court GRANTS PERB's requests for judicial notice pursuant to Evidence Code § 452(c). Consequently, the Court need not take judicial notice of the documents identified by petitioner, as they largely consist of the same documents identified by PERB.

Where pleadings are defective, a party may raise the defect by way of a demurrer or motion to strike or by motion for judgment on the pleadings. (CCP §430.30(a); Coyne v. Krempels, (1950) 36 Cal.2d 257.) The party against whom a complaint or cross-complaint has been filed may object by demurrer or answer to the pleading. (CCP §430.10.) A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP §430.30(a); Blank v. Kirwan, (1985) 39 Cal.3d 311, 318.)

PERB argues that the petition is subject to demurrer because it fails to make out a claim that is subject to judicial review under International Ass'n of Fire Fighters, Local 188, AFL-CIO v. Public Employment Relations Bd. ("Fire Fighters") (2011) 51 Cal.4th 259. The Court agrees.

A Court's review of PERB's determination under traditional mandamus is governed by the California Supreme Court's decision in Fire Fighters. (See also Government Code § 3509.5(a).) In Fire Fighters, our Supreme Court held that mandamus review of PERB's decision not to issue a complaint is available in only three limited circumstances, stating:

[W]hen PERB refuses to issue a complaint under the MMBA [Meyers-Milias Brown Act], a superior court may exercise mandamus jurisdiction to determine whether PERB's decision [1] violates

a constitutional right, [2] exceeds a specific grant of authority, or [3] is based on an erroneous statutory construction.

(Id. at 271.) In emphasizing that these circumstances permitting judicial review of a PERB decision not to issue a complaint was truly “limited,” the Court further stated:

We stress, however, that it remains true that a refusal by PERB to issue a complaint under the MMBA is not subject to judicial review for ordinary error, including insufficiency of the evidence to support the agency's factual findings and misapplication of the law to the facts, or for abuse of discretion. Also, to avoid undue interference with the discretion that the Legislature has intended PERB to exercise, courts must narrowly construe and cautiously apply the exceptions we here recognize.

(Ibid.)

Here, the petition sets forth ordinary error by PERB not subject to review by this Court. The petitioner alleges that PERB erred because, “[o]nce PERB recognized that [p]etitioner adequately alleged retaliation for protected activity, the proper course was to permit further administrative processing unless the charge was legally incapable of proceeding.” (Pet. ¶ 39.)

The petition further alleges that PERB improperly applied a heightened pleading standard and required petitioner to litigate the merits of his case. (Pet. ¶¶ 41-49.) The petition additionally alleges that PERB “overlooked the legal significance of a public employer’s lawsuit seeking damages and injunctive relief” and should not have treated the settlement agreement as dispositive (Pet. ¶¶ 53, 56.) None of these allegations fall within the narrow exceptions provided within Fire Fighters. A disagreement with the outcome of a case does not establish a failure of PERB to perform its statutory function. (See *Williams v. Public Employment Relations Bd.* (2012) 204 Cal.App.4th 1119, 1127 [“To the extent appellants seem to suggest that PERB did not perform its statutory function with regard to their charges, they are incorrect; what appellants disagree with is PERB’s conclusion they had not established a prima facie case.”].)

In opposition, petitioner contends that his claims of error fall within the Fire Fighters’

exceptions for exceeding a specific grant of authority to PERB and for an erroneous statutory construction. (Opp. at 12:1-4.) Although he claims such exceptions, petitioner identifies no specific grant of authority that was exceeded and no statute that was erroneously construed. Instead, petitioner simply repeats the ordinary legal error alleged in the petitioner, arguing that “PERB improperly elevated Petitioner’s pleading burden, prematurely resolved issues reserved for later administrative proceedings, and effectively converted the complaint issuance process into a determination on the merits.” (Opp. at 12:8-10.) Petitioner simply conflates PERB’s purported legal error in evaluating his claim with conduct equating to acting in excess of “a specific grant of authority” or to “an erroneous statutory construction.” But, as instructed in *Fire Fighter*, “courts must narrowly construe and cautiously apply the exceptions we here recognize,” not expand the limited exceptions to swallow up the general prohibition against judicial review or ordinary error. (*Fire Fighters*, 51 Cal.4th at 271.)

With respect to the exception for an erroneous statutory construction, petitioner argues that PERB’s decision was based on an erroneous statutory construction of the EERA because PERB is required petitioner to address the merits of his charge, rather than accept his allegations as true. (Opp. at 12-14, 16-17.) Petitioner, however, fails to show how EERA imposes any particular pleading standard. To the contrary, where a charge includes a claim of interference with EERA rights or retaliation via litigation, PERB’s prior precedent requires a showing that the respondent acted without any reasonable basis and for an unlawful purpose. (*Operating Engineers Local Union No. 3, AFL-CIO (Wagner)* (2021) PERB Decision No. 2782-M, at pg. 8.) When PERB applied that same precedent to petitioner’s claim here, it engaged in no erroneous application of EERA or any other statute.

As for exceeding a specific grant of authority, as noted above, petitioner identifies no such specific grant of authority that was exceeded. Instead, petitioner argues that PERB exceeded its authority by “applying its litigation-retaliation standard in a manner that creates practical immunity for employer lawsuits targeting protected PERB activity. (Opp. at 18:3-4.)

It is not clear how PERB’s application of a standard for pleading to evaluated petitioner’s claim exceeded PERB’s authority. Moreover, PERB’s requirement of compliance with particular pleading requirements does not, as petitioner claims, immunize PERB from responsibility for its unlawful conduct.

Accordingly, because the petition fails to allege adequately that any of the limited circumstances permitting judicial review of PERB's decision under Fire Fighter, the Court SUSTAINS the Demurrer. Furthermore, based on the arguments presented by petitioner in opposition, the Court does not find that it is reasonably possible that such defect could be cured by amendment. Thus, leave to amend is DENIED. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)